

HOUSE No. 5631

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2026.

The committee on Ways and Means, to whom was referred the Bill mandating access to cancer screenings for firefighters through health care benefits plans or programs provided by the public employers (House, No. 4946), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5631).

For the committee,

AARON MICHLEWITZ.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act mandating access to cancer screenings for firefighters through health care benefits plans or programs provided by the public employer.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by adding the
2 following section:-

3 Section 35. The commission shall provide cancer screening pursuant to section 91 of
4 chapter 48 for eligible enrollees. Coverage provided pursuant to this section shall not be subject
5 to co-payment, deductible, coinsurance or any out-of-pocket expense; provided, however, that
6 cost sharing shall be required if the applicable plan is governed by the federal Internal Revenue
7 Code and would lose its tax-exempt status as a result of the prohibition on cost sharing for these
8 services.

9 SECTION 2. Chapter 48 of the General Laws is hereby amended by adding the following
10 section:-

11 Section 91. (a) For the purposes of this section, the Massachusetts Port Authority, the
12 Massachusetts Military Reservation, the Barnes Air National Guard Base and the Devens

Regional Enterprise Zone established pursuant to chapter 498 of the acts of 1993 shall be fire districts.

(b) A cancer screening examination conducted by a physician shall be provided to: (i) a firefighter employed as a full-time paid employee of a fire department of the commonwealth or a city, town, fire or water district; (ii) members of the Massachusetts military reservation fire department; (iii) members of the 104th fighter wing fire department; and (iv) members of the Devens fire department established pursuant to chapter 498 of the acts of 1993. The screening shall be conducted not less than 3 years after the start of the firefighter's employment as a firefighter and every 3 years thereafter during the course of the firefighter's employment.

(c) The examination pursuant to subsection (b) shall include screening for, at a minimum and when applicable, colon cancer, lung cancer, bladder cancer, oral cancer, thyroid cancer, skin cancer, blood cancer, breast cancer, cervical cancer, testicular cancer and prostate cancer.

(d) All costs associated with screenings pursuant to this section shall be borne by the firefighter's health care benefits plan or program provided by the firefighter's employer.

SECTION 3. Chapter 175 of the General Laws is hereby amended by adding the following section:-

Section 233. Any blanket or general policy of insurance shall provide cancer screening pursuant to section 91 of chapter 48 for eligible enrollees. Coverage provided pursuant to this section shall not be subject to co-payment, deductible, coinsurance or any out-of-pocket expense; provided, however, that cost sharing shall be required if the applicable plan is governed by the federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on cost sharing for these services.

SECTION 4. Chapter 176A of the General Laws is hereby amended by adding the following section:-

Section 39. A contract between a subscriber and the corporation under an individual or group hospital service plan shall provide cancer screening pursuant to section 91 of chapter 48 for eligible enrollees. Coverage provided pursuant to this section shall not be subject to co-payment, deductible, coinsurance or any out-of-pocket expense; provided, however, that cost sharing shall be required if the applicable plan is governed by the federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on cost sharing for these services.

SECTION 5. Chapter 176B of the General Laws is hereby amended by adding the following section:-

Section 26. Any subscription certificate under an individual or group medical service agreement, except certificates that provide supplemental coverage to Medicare or other governmental programs, that is delivered, issued or renewed within the commonwealth shall provide cancer screening pursuant to section 91 of chapter 48 for eligible enrollees. Coverage provided pursuant to this section shall not be subject to co-payment, deductible, coinsurance or any out-of-pocket expense; provided, however, that cost sharing shall be required if the applicable plan is governed by the federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on cost sharing for these services.

SECTION 6. Chapter 176G of the General Laws is hereby amended by adding the following section:-

56 Section 34. Individual and group health maintenance contracts shall provide cancer
57 screening pursuant to section 91 of chapter 48 for eligible enrollees. Coverage provided pursuant
58 to this section shall not be subject to co-payment, deductible, coinsurance or any out-of-pocket
59 expense; provided, however, that cost sharing shall be required if the applicable plan is governed
60 by the federal Internal Revenue Code and would lose its tax-exempt status as a result of the
61 prohibition on cost sharing for these services.